

SUBJ: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

This Justification and Approval seeks to require inclusion of a brand name in the solicitation N62470-25-R-0004 MILCON P1080 Design-Bid-Build, Power Reliability and Water Resiliency Upgrades, Portsmouth Naval Shipyard, Kittery, Maine. The water main installation, replacement, and repair [REDACTED]

[REDACTED] requires new Remote Terminal Units for all existing sites, proposed meter sites, and the SCADA System and existing pump station controls will be upgraded. [REDACTED]

[REDACTED] Allen Bradley control systems make up the majority of control systems in the United States. This results in a large population of experts, support staff, and operator familiarity. A major driving factor is the proprietary nature of the existing control system. The shipyard has been unable to secure reliable support or alternatives to a single systems integrator. Moving to a platform more widely used, without proprietary control functions, logic, and parts, greatly increases their reliability. Furthermore, standardizing on this system across the shipyard allows them to keep replacement wearable parts within the control system. A water distribution system consisting of a single control system model promotes overall system readiness by allowing the Water Operations Department to stock replaceable parts and develop skills and expertise in the work involved in maintenance of the system. Each manufacturer of control systems produces unique assembly of various parts and software. It is infeasible to maintain an on-the-shelf parts supply, or support staff, for multiple models thereby resulting in a significant reduction in readiness.

The units are being procured under the referenced solicitation. [REDACTED]

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ____ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ____ RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. ____ EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. ____ OTHER REASONS.

B. X BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

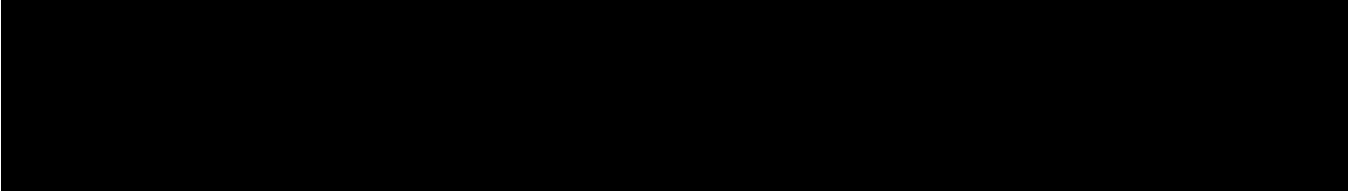
Allen Bradley programable logic controllers are required because the products meets the solicitation's specific needs, and it is the only product on the market that fulfills all of the requirements outlined above.

C. ____ UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:
4. If appropriate, include any additional pertinent information.

IV. CERTIFICATIONS/APPROVALS:

Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Contracting Officer Approval

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

